



Order under Section 69 Residential Tenancies Act, 2006

Citation: Hebibasi v Good, 2026 ONLTB 2212

Date: 2026-01-06

File Number: LTB-L-075083-25

In the matter of: A, 3823 WINDEMERE RD
NIAGARA FALLS ONTARIO L2J2Y4

Between: Klaudio Hebibasi Landlord

And

Arienne Good Tenants
Tatiana Willms

Klaudio Hebibasi (the 'Landlord') applied for an order to terminate the tenancy and evict Arienne Good and Tatiana Willms (the 'Tenants') because the Landlord in good faith requires possession of the rental unit for the purpose of residential occupation for at least one year.

This application was heard by videoconference on December 17, 2025. The Landlord and the Tenants attended the hearing.

Determinations:

Preliminary Issue – Notice Period

1. On August 14, 2025, the Landlord gave the Tenants an N12 notice of termination, deemed served on August 15, 2025, with the termination date of November 1, 2025 (the 'N12 Notice').
2. At the hearing, the parties confirmed that rent is due on the 1st day of each month.
3. The N12 Notice was given pursuant to subsection 48(1) of the *Residential Tenancies Act*, 2006 (the 'Act'). Subsection 48(2) provides that the termination date set out in the notice must be at least 60 days after the notice is given and must be the day a period of the tenancy ends, or where the tenancy is for a fixed term, the end of the term.
4. In this case, because rent is due on the first day of each month, the termination date in the notice must fall on the last day of the month as that is the end of the rental period.

5. As explained at the hearing, the Board does not have discretion to alter the notice requirements for notices of termination. In this regard, subsection 56. 1., of the O. Reg. 516/06 under the Act specifically states,

56. The following are time requirements that the Board may not extend or shorten under subsection 190 (2) of the Act:

1. All time requirements related to notice requirements for terminating tenancies [emphasis added].
6. For these reasons, I determined the N12 Notice was defective. The Board cannot terminate a tenancy based on a defective notice of termination. Accordingly, the application must be dismissed.

It is ordered that:

1. The Landlord's application is dismissed.

January 6, 2026
Date Issued

Rachel Gibbons
Member, Landlord and Tenants Board

15 Grosvenor Street, Ground Floor
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If you have any questions about this order, call 416-645-8080 or toll free at 1-888-332-3234.